

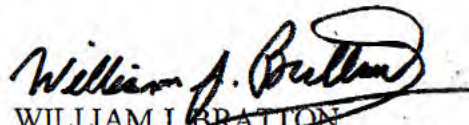


POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Sergio Gonzalez : ORDER
Tax Registry No. 941837 : OF
Military & Extended Leave Desk : DISMISSAL
-----X

Police Officer Sergio Gonzalez, Tax Registry No. 941837, Shield No. 24530, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 2011-4169, as set forth on form P.D. 468-121, dated July 5, 2013, and after a review of the entire record, having pled Guilty, is found Guilty of Specification Nos. 1, 3, 4, 7, and 8 and found Guilty of Specification No. 9. He is found Not Guilty of Specification Nos. 5, 6, and 10. The Department dismissed Specification No. 2.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Sergio Gonzalez from the Police Service of the City of New York.


WILLIAM J. BRATTON
POLICE COMMISSIONER

EFFECTIVE: On February 26, 2015 at 0001 hours.



POLICE DEPARTMENT

January 16, 2015

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

2011-4169

Police Officer Sergio Gonzalez :

Tax Registry No. 941837 :

Military & Extended Leave Desk :

-----X
At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Amy J. Porter
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department:

Penny Bluford-Garrett, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Roger S. Blank, Esq.
373 Park Avenue South-6th floor
New York, NY 10016

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on November 8, 2013; February 10, February 11, April 24, May 20, June 3, July 25, September 9, October 9, and October 14, 2014, charged with the following:

1. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off-duty, on or about March 15, 2011, within the confines of the 78th Precinct, in Kings County, did wrongfully operate a motor vehicle while under the influence of an intoxicant.

PG 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS
NYS VTL Section 1192(3) - OPERATING A MOTOR VEHICLE WHILE UNDER
THE INFLUENCE OF ALCOHOL OR DRUGS

2. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off-duty, on or about March 15, 2011, within the confines of the 78th Precinct, in Kings County, did wrongfully operate a motor vehicle while his ability was impaired by the consumption of alcohol.

PG 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS
NYS VTL Section 1192(1) - OPERATING A MOTOR VEHICLE WHILE UNDER
THE INFLUENCE OF ALCOHOL OR DRUGS

3. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off-duty, on or about March 15, 2011, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Police Officer Gonzalez refused to submit to a breathalyzer test.

PG 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS

4. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off-duty, on or about March 15, 2011, did consume an intoxicant to the extent that said Officer was unfit for duty.

PG 203-04, Page 1, Paragraph 2 - FITNESS FOR DUTY

5. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off-duty, on or about March 15, 2011, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: after having struck two other motor vehicles, said Police Officer Gonzalez did attempt to leave the scene of the incident.

PG 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS
NYS VTL Section 600(2)(A) - LEAVING THE SCENE OF AN INCIDENT

6. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off-duty, on or about March 15, 2011, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Police Officer Gonzalez did wrongfully possess a hypodermic needle.

PG 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS

PL 220.45 - CRIMINAL POSSESSION OF A HYPODERMIC INSTRUMENT

7. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, while off duty, on or about March 15, 2011, did consume an intoxicant to the extent that said Officer was unfit for duty while armed.

PG 203-04, Page 1, Paragraph 2 - FITNESS FOR DUTY

8. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, on or about March 15, 2011, was wrongfully in possession of an unauthorized duplicate New York City Police Department shield # 24530, without permission or authority to do so.

PG 203-10, Page 2, Paragraph 18 - PROHIBITED CONDUCT
GENERAL REGULATIONS

9. Said Police Officer Sergio Gonzalez, assigned to Patrol Borough Brooklyn North Task Force, on or about March 16, 2011, did knowingly and unlawfully possess a controlled substance, to wit: an anabolic steroid.

PG 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS

NYS PENAL LAW SECTION 220.03 - CRIMINAL POSSESSION OF A
CONTROLLED SUBSTANCE IN THE
SEVENTH DEGREE

10. Said Police Officer Sergio Gonzalez, assigned to the Military Leave Extended Desk, on or about April 10, 2013, engaged in conduct prejudicial to the good order efficiency and discipline of the Department, to wit: said officer provided inaccurate and misleading statements during an official Department interview in that he said his doctor prescribed the anabolic steroid Sustamed, when that was not in fact true. (*As amended*)

PG 203-10, Page 1, Paragraph 5 GENERAL REGULATIONS

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and Respondent was represented by Roger S. Blank, Esq.

The Department dismissed Specification No. 2. The Respondent, through his counsel, entered a plea of Guilty to Specification Nos. 1, 3, 4, 7, and 8, and he testified in mitigation of the penalty. He entered a plea of Not Guilty to Specification Nos. 5, 6, 9, and 10. A

stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pled guilty, is found Guilty of Specification Nos. 1, 3, 4, 7, and 8. He is also found Guilty of Specification No. 9. He is found Not Guilty of Specification Nos. 5, 6, and 10.

FINDINGS AND ANALYSIS

Introduction

On the night of March 15, 2011, Respondent was driving on Fifth Avenue in Brooklyn when he struck an occupied double-parked livery cab, causing it to strike an unoccupied parked car. Respondent then struck the rear of a marked Radio Motor Patrol car (RMP), which was occupied by 78 Precinct Police Officer John Padormo and patrol supervisor, Sergeant Paul Knight. Police Officer (now Sergeant) Wesley Pericone and Police Officer Danny Arroyo responded to the accident scene. They saw Respondent's firearm on the car floor, prescription medication on the console, and several alcoholic beverage containers. Syringes were also found in the car. Respondent was deemed unfit for duty and arrested for driving while intoxicated. He refused to submit to a breathalyzer.

The next day, Lieutenant Joseph Profeta and Deputy Inspector Philip Romanzi of the Internal Affairs Bureau (IAB) went to Respondent's command to retrieve his shield from his locker. Inside the locker, Profeta observed a black bag containing a hypodermic needle and glass

ampules. Profeta terminated the search and obtained a search warrant. Upon execution of a warrant, three broken glass ampules were recovered from the locker.

Respondent was sent for drug testing. Though the test came back with positive results for testosterone, the test was deemed a "pass" because Respondent produced medical records showing that he had been legally prescribed [REDACTED] by his doctor for the treatment of low [REDACTED]. Subsequent lab analysis on residue found in the glass ampules, however, came back with positive results for Sustamed. Sustamed is an anabolic steroid not available legally in the United States, not even by prescription.

In October 2012 in Kings County Criminal Court, Respondent received an adjournment in contemplation of dismissal on a charge of Criminal Possession of a Controlled Substance in the seventh degree because of the anabolic steroid found in his locker. After completing an alcohol awareness program, he pled guilty the following year to the violation of Driving while Impaired.

The March 15, 2011 Car Accident

Respondent has pled guilty to most of the Specifications relating to the March 15 car accident: wrongfully operating a motor vehicle while under the influence of an intoxicant, refusing to submit to a breathalyzer test, being unfit for duty while off duty, being unfit for duty while armed, and possessing an unauthorized duplicate shield. The only Specifications at issue are No. 5 (attempting to leave the scene of the accident) and No. 6 (possessing a hypodermic needle).

There were already several ambulances and fire trucks present when the responding officers, Arroyo and Pericone, arrived at the scene. Witnesses pointed Respondent out to the

officers, indicating that he had been involved in the accident. Arroyo testified that Respondent was crossing the street and walking away from the cars. Though Respondent was 30 or 40 feet away, he was not running or attempting to hide. Pericone testified that Respondent's distance was more like 50 feet, but he agreed that Respondent was walking across the street at a slow and steady pace. [Court Exhibit (CX) 1 is a diagram of the accident scene, as drawn by Respondent's attorney. Department's Exhibits (DX) 14A and B are photographs of the intersection. DX 1 through 10 and 12 are photographs taken at the scene of the damage to the vehicles involved in the accident.]

The officers approached Respondent on the sidewalk. Respondent identified himself as a member of the service and displayed his Department identification card. Arroyo described Respondent as appearing agitated, upset, dazed, confused, but cooperative. Respondent received medical treatment at the scene. Afterward, Arroyo arrested him. Pericone, meanwhile, vouchered the items recovered in the vehicle. [DX 15 through 17 and 27 are the Property Clerk Invoices he prepared. The recovered property included an empty vodka bottle, empty rum bottle, empty flask, purple and pink pills, pill containers, multiple syringes, and Humulin packaging. DX 11 and 13 are photographs of the flask and a mini-bottle of alcohol Pericone found on the car floor.]

Padormo testified that as a result of Respondent rear-ending his RMP, he suffered a sore neck and back and a small scrape on his shin. He sought treatment at the hospital and was released the same night. He spent about a week out on sick leave. Sergeant Knight also went to the hospital and missed a week of work. Padormo recalled that before being removed to the hospital, someone approached the RMP to ask if he was all right. Padormo did not recall if that person was Respondent. However, IAB Sergeant David Gomes testified that Knight specifically

informed investigators that Respondent identified himself at the scene, acknowledged that he was the one who struck the RMP, and asked Knight if he was okay. Respondent was fully cooperative throughout the investigation.

Respondent described the March 2011 accident as one of the biggest mistakes of his life, a mistake he has taken responsibility for. Prior to the accident he had five or six alcoholic beverages at a bar. He had an alcohol problem, but he has since attended two sessions of [REDACTED] and three or four times a week of [REDACTED]. He still regularly attends [REDACTED] on a voluntary basis. He is in the process of developing a [REDACTED]. [DX 22 is the certificate of disposition for Respondent's guilty plea to driving while impaired.]

About Specification No. 5, which charges Respondent with attempting to leave the scene of the accident, it was undisputed that he was walking away when the officers arrived at the location. The Department argued that this demonstrated an intent to flee. Respondent's testimony was consistent with Knight's statement, in that he immediately ran to the RMP, approached Knight's side of the car, and identified himself. He told Knight in substance, "Hey, I'm the one that hit you. I'm on the job. Are you okay?" Respondent testified that he stood by the RMP until an ambulance arrived. At that point, he walked to his car to pick up personal belongings that had scattered all over the street. His airbag had opened during the accident and hit him in the face. He was in shock and disoriented. At one point, he walked toward the sidewalk to sit down or lean against a tree. He never attempted to leave the scene.

The Court finds that Respondent credibly explained his actions at the accident scene. If he had wanted to flee the scene, he would have neither stopped at the RMP to check on Padormo

and Knight, nor would he have walked away in such a casual manner. According to Arroyo and Pericone, he was 30 to 50 feet away and slowly walking to the sidewalk. Between the alcohol in his system and the shock of the accident and airbag opening in his face, it is understandable that he would walk across the street in a disoriented manner, wanting to get out of the street and onto the sidewalk where he could get his bearings.

Respondent is charged in Specification No. 6 with wrongfully possessing a hypodermic needle. The needles recovered from Respondent did not test positive for any controlled substance. [Respondent Exhibit (RX) A is the laboratory report on the needles.] It was undisputed that Respondent had legally prescribed [REDACTED] for which he had permission to use hypodermic needles.

Based on the foregoing, Respondent is found Not Guilty of Specification Nos. 5 and 6.

Motion to Suppress

Respondent submitted a motion to suppress the evidence recovered from his locker. Profeta testified that because the shield that Respondent had on him at the time of his arrest was a duplicate, he went to Respondent's command the next day to retrieve the original shield. He and Romanzi forced open Respondent's locker with bolt cutters and, as they were looking for the shield, came across what appeared to be drug paraphernalia. Profeta specified that what he saw was a small black toiletry bag, which when he opened he found a needle and ampules inside. Romanzi terminated the search at that point in order to get a search warrant for a more detailed search of the locker. The locker was secured until Profeta returned a few hours later with a warrant in hand. A subsequent search resulted in Profeta recovering a hypodermic needle with syringe, empty hypodermic needle wrappers, empty alcohol pad wrappers, three broken ampules

labeled "Sustamed," three purple pills, one orange pill, empty prescription bottles, two clear containers with a powdery substance inside, and a gauze pad. Profeta vouchered these items.

[DX 18A and B are the search warrant and receipt. 18C is the entire search warrant-related package, including Profeta's affidavit in request of the warrant. 19A through D are the Property Clerk Invoices Profeta prepared.]

Profeta clarified that before opening the locker he did not have any specific information indicating that the shield would be inside. Though the shield did turn out to be in the locker, Profeta could not recall exactly where in the locker it was located. Nor did he recall if he found the shield before or after he found the toiletry bag. Based on what he found inside the bag, he believed that there was a controlled substance in the locker. Profeta had no idea what was in the toiletry bag until he opened it. The word "Sustamed" was etched into the ampules. Profeta had never heard of Sustamed before. Profeta sent the items to the laboratory for testing.

Respondent argued that the evidence recovered from his locker should be suppressed because the search lacked probable cause and was, therefore, unlawful. Respondent also argued that if the purpose of the search was to find his shield, it should have ceased once the shield was located. Respondent further argued that getting the warrant did not legitimize the search since all the evidence was found before the warrant was obtained. Moreover, it was the fruits of that illegal pre-warrant search on which the application for the warrant was based.

The Assistant Department Advocate (ADA) responded that the search of the locker was lawful, as Respondent had a diminished expectation of privacy. The Court agrees with the ADA. *Patrol Guide* Section 219-19 provides that "a supervisory member of the service may inspect Department lockers *at any time* during an official investigation." Here the timing of the

inspection in this case was not even just “any time,” but the day after Respondent was suspended and arrested for serious off-duty misconduct.

Police officers have a diminished expectation of privacy in the work place, and given the explicit rules of the Department, Respondent did not have an expectation of privacy in his locker. This is consistent with *O'Connor v. Ortega*, 480 U.S. 709, 726 (1987), in which the United States Supreme Court held that the search of a public employee's possessions at the employee's place of employment must be “reasonably related in scope to the circumstances which justified the interference in the first place.” The Court also held that a search is permitted “when there are reasonable grounds for suspecting that the search will turn up evidence that the employee is guilty of work-related misconduct, or that the search is necessary for a non-investigatory work-related purpose.” *Id.* at 729. Irrespective of what Profeta and Romanzi found in Respondent's locker, the basis for the search was the legitimate need of the Department to locate Respondent's shield. Had it not been for Respondent's arrest and failure to turn in his original shield, Respondent would not have been subject to an investigation that allowed his supervisors to search his locker. After being suspended, arrested, and turning in an unauthorized duplicate shield, Respondent did not have a reasonable expectation of privacy in his locker.

Respondent compared his case to *People v. Postall*, 580 N.Y.S.2d 975 (N.Y. Sup. Ct. 1992), where a postal inspector broke open the defendant's locker with no basis for a search, but rather a “hunch and his belief that according to ‘regulations’ he could search lockers at will.” Respondent's case is distinguishable from *Postall*. In Respondent's case, Profeta and Romanzi did not search the locker because they merely had a “hunch” that Department's regulations permitted them to. Rather, the *Patrol Guide* explicitly states that the contents of the locker, without mentioning any restrictions on content, can be inspected pursuant to an official

investigation. Moreover, while the incident under investigation in *Postall* had no connection with the defendant's locker, Profeta and Romanzi had reason to look in Respondent's locker for the missing shield.

Even if the search of Respondent's locker was not lawful, compliance with the technical rules of evidence is not required in Department trials. Hence, fruits of an unlawful search may be admissible in administrative disciplinary proceedings, *Boyd v. Constantine*, 613 N.E.2d 511 (N.Y. 1991). This Court has previously relied on *Boyd* to find that even if evidence is obtained from a search that could raise Fourth Amendment issues, it should not be suppressed. In *Case No. 69081/94*, (February, 1995), Respondent's counsel argued that the contraband evidence should be suppressed because it was fruits of an illegal search. The Court admitted the evidence and reasoned that "if the drugs were suppressed, the adverse impact upon the truth-finding process in administrative proceedings concerning police personnel and their use of drugs would be significant." This Court has also held that even if a marijuana roach seized from an officer's automobile in upstate New York was obtained from an illegal search, the exclusionary rule's goal of deterring unlawful police conduct would not be served by excluding this evidence from a police disciplinary proceeding. *See Case No. 68583/94* (May 12, 1995).

Based on the foregoing, the Court finds that the search of Respondent's locker was consistent with Department policy. Moreover, as per *Boyd*, the exclusionary rule should not be applied in this case even if the locker search were unlawful. This is because the Department's interest in a drug-free environment is paramount. For these reasons, Respondent's motion to suppress the evidence recovered from his locker is denied.

The Lab Results

Respondent is charged in Specification No. 9 with knowingly and unlawfully possessing a controlled substance, an anabolic steroid.

Criminalist Aline Barron, who has worked in the Department lab for nearly six years, conducted the testing on the ampules found in Respondent's locker. She explained that, as with any sample being tested, the first thing she did was add the solvents methanol and cetyl alcohol to the liquid residue in the ampules. The resulting solution was what was run through the instrumentation for testing. The test conducted was gas chromatography mass spectrometry (GCMS), which separated and identified the components in the solution. All three ampules tested positive for four types of testosterone: propionate, isocaproate, decanoate, and phenyl propionate. These are the four active ingredients of Sustamed. It was this finding on which Specification No. 9 was based. [DX 20 is a photograph of the ampules in their storage bag, as they were received by Barron at the laboratory on March 31, 2011. DX 21 is the laboratory data package that Barron prepared.]

Respondent's explanation for the test results was that at one point the glass vials that his legally prescribed testosterone cypionate came in broke, and he needed to find replacement containers. While at a bodybuilding event, he purchased the ampules that appeared to be empty. He transferred his testosterone cypionate into the ampules. He did not notice that the word "Sustamed" was etched in small letters into the ampules.

Barron explained the GCMS process. First, gas chromatography is employed to purify and separate compounds. Then, inside the mass spectrometer, the sample is ionized by an electronic beam and fragmented into smaller parts. The fragmented compounds are then sent

through something called a quadrupole, where they are filtered based on their master charge ratio. At the end of the process, a computer generates a graph, or spectrum, of each component in the tested solution. The vertical axis of a spectrum represents intensity concentration; the horizontal axis represents mass and charge. Spectra are compared to standard spectrum patterns stored for reference in the laboratory library. Barron agreed that this spectral analysis is reliant to some degree on the "subjective judgment" of the technician.

The laboratory instruments are inspected daily. The equipment is composed of parts, such as an injection port septum, that periodically need replacement. Barron did not know how often the septum needed to be replaced. She conceded it was possible that some parts can begin to wear down during the course of a day, but she personally conducts an additional inspection before every test. One way of insuring that the machinery is functioning properly is by running a "blank sample" through the system before running the actual testing sample. About the methanol/cetyl alcohol wash, Barron explained that the wash was pre-mixed, and every technician in the room used the same bottle. She conceded that there was potential for contamination to occur between different technicians using the same master solvent bottle.

Gary Green, who testified on behalf of the Department, was deemed an expert in the field of anabolic steroids. He is a physician, clinical professor at the University of California (UCLA) Division of Sports Medicine, works in the UCLA Olympic Drug Testing Lab, and is head team physician for Pepperdine University. He is also director of the UCLA Intercollegiate Drug Testing Program and medical director for Major League Baseball (MLB). About his position for MLB, he explained that when he first started it was mainly as a consultant in the field of anabolic steroids including testosterone. He previously spent five or six years as chairperson for the National Collegiate Athletic Association's drug testing committees. He has written at least 20

scientific articles or textbook chapters on the topic of anabolic steroids and performance-enhancing drugs. He has testified on the topic for this Department, the Los Angeles Police Department, and the Drug Enforcement Administration. Though the Department pays Green for his services, it does not tell him what position to take on a case. He makes an independent analysis of the facts in a case. [DX 24 is his Curriculum Vitae.]

Green explained that while testosterone is naturally produced, synthetic testosterone is anabolic steroids and categorized as Schedule III drugs under the Anabolic Steroid Act. Green had the opportunity to review the lab results on the ampules, Respondent's medical records [DX 25], and his drug test results [DX 26]. He found Respondent's claim about putting the legally prescribed testosterone into the ampules labeled Sustamed to be inconsistent with the laboratory analysis conducted on the ampules. The analysis showed that all four of the Sustamed testosterone compounds were present in the ampules but there was no trace of testosterone cypionate. Testosterone cypionate was the compound Respondent claimed he inserted into the ampules.

Green described three factors which indicated that Respondent abused anabolic steroids. First, Respondent was suffering from testosterone deficiency in his mid-twenties, which is very unusual. Deficiency at such a young age is most often (but not always) the result of anabolic steroid abuse, as someone taking anabolic steroids will stop producing testosterone naturally. This is because the synthetic male hormones fool the body into believing that there is enough testosterone already.

A second reason that Respondent probably abused anabolic steroids was that officers found insulin (Humulin) in his car. Insulin is sometimes used in conjunction with drugs like growth hormones and anabolic steroids.

A third reason that Respondent could have abused anabolic steroids was that the medical records indicated that Respondent last received a prescription for the testosterone cypionate on August 31, 2010 and that his physician, Doctor Russo, wanted to see him again in one to two months. The record did not show how much testosterone Russo prescribed at that time, but Green assumed that since Russo wanted to see him within two months he would have prescribed just a two-month supply. In general, a patient has to see the doctor in person in order to get more of a controlled substance. Though the drug test conducted on Respondent would not have differentiated between the [REDACTED] and the testosterone esters in Sustamed, the testosterone found in Respondent's system would have unlikely come from the legally prescribed [REDACTED]. This is because [REDACTED] has a half-life of only about two weeks and Respondent's drug test was conducted in March 2011, more than six months after he received his last known [REDACTED] prescription.

Respondent, through witness Alfred Yergey, called into question the integrity of the lab testing procedure and the accuracy of the results. Yergey was deemed an expert in the field of mass spectrometry (MS). He is a scientist emeritus at the National Institutes of Health (NIH). Before his 2012 retirement, he was director of the MS facility of the National Institute of Child Health and Human Development. He holds bachelor of science and doctorate degrees in chemistry, and was a post-doctoral fellow at Rice University. Awards and recognitions that he has received in his field include a Woodrow Wilson fellowship, a National Science Foundation cooperative graduate fellowship, and the University of Calgary's adjunct faculty research award.

Yergey has been using MS since 1963, and he uses the instrumentation in his research on a daily basis. [CX 2 is a diagram of a GCMS spectrum, as drawn by Yergey.]

He has extensive experience in designing, assembling, and servicing MS instrumentation. He has given many lectures and classes on the use of MS, both domestically and internationally. He has published nearly 160 papers on the subject and co-authored a book entitled *Principles of Quantitative Mass Spectrometry*. He currently sits on the editorial review boards of the Journal of the American Society for Mass Spectrometry and the Journal of Analytical Biochemistry.

Though his work is very highly regarded by his colleagues, Yergey has never given testimony in court regarding MS instrumentation. He explained that as a federal employee he was not permitted to testify in court except as directly related to governmental issues. In this case, he not receive compensation for testifying. [RX B is his Curriculum Vitae.]

Yergey reviewed Barron's testimony and the data package that she prepared about the ampules. He testified that in some form or another all parts of MS instrumentation are subject to wear. The septum is a part that would experience wear first. The consequence of wear is that contamination can build up and lead to spurious results. Upon review of the Department lab results, Yergey noted that one of the blank samples that Barron ran showed the presence of methyl octadecenoic. He explained that this was a sign of contamination since, because it was a blank sample, nothing but the standard methanol/cetyl alcohol wash should have appeared in the results. Yergey noted a second example of contamination in the data package, one in which a blank sample came back with four compounds that should not have been there. "When blanks look like that," Yergey testified, "the results of an analysis of an unknown sample become meaningless they have no validity, they cannot be trusted."

According to Yergey, the contamination was not just limited to Barron's blank samples. He noted 55 times that Barron ran samples from the same vial twice and came back with results showing different amounts of compounds present. He explained that this could have only come

from external contamination since samples from the same vial should have the same number of compounds. Yergey testified that this showed “gross misanalysis, absolutely terrible analytical practice, unacceptable results.”

Another issue that Yergey had with Barron’s results was that at least once the samples and the reference compounds that the samples were being compared to were run through the machine hours apart. Yergey found this disturbing, explaining, “The standards are not well associated with the samples being analyzed. . . .I would expect standards to be run in close time proximity to the samples being run.” He called this a non-standard and unacceptable procedure because “intensities of signals” can vary with time.

Yet another issue Yergey had with the results was a belief that some data was withheld by the lab. He explained that this belief was based on the facts that the MS machine has a data system that automatically generates a sequential file number for each sample that is run through it, and there were certain file numbers missing from the data package. Yergey testified, “That’s unacceptable procedure in presenting data to someone who is expected to review those data. In this case it makes me very skeptical about the overall quality of the data.” He had never before seen lab results with missing file numbers. Yergey believed that the missing file numbers amounted to data manipulation. He explained, “The jargon term is ‘cherry picking’ data. You select what you want out of a set of data and you ignore everything else.” Yergey referred to the Code of Federal Regulations, which provides that a form of research misconduct is the omission of data or results such that the research is not accurately represented in the research record. RX C is the relevant Code of Federal Regulations section.

One last issue that Yergey had with Barron's results was that she never compared the spectra of the ampule contents with an actual Sustained spectrum. Yergey conceded that he has never been to the Department lab.

Criminalist Sai Tsang, who the Department called to rebut Yergey's testimony, was deemed an expert on the subject of analysis of controlled substances. Tsang has worked in the Department lab for six years and is responsible for ensuring that the GCMS instrumentation is suitable for casework. Every morning before testing commences, she runs test samples through the machines and checks to see that the results are accurate, within a predetermined margin of error. If the results are outside the margin of error, she has to diagnose the problem and fix it. While an instrument is not working properly, it is rendered out of service and will not be used by the chemists.

Tsang has a bachelor's degree in forensic science and is currently working on a master's degree in public health. In addition, she received 11 months of specialized Department training on analyzing controlled substances. Three of those months were spent specifically on working with GCMS machines, and she has personally used GCMS instruments to analyze controlled substances on 1200 cases. On ten previous occasions, Tsang has testified in court as an expert on controlled substance analysis.

Tsang explained that the Department lab follows the procedures of forensic laboratories, and it is accredited by the American Society of Crime Laboratory Directors. To maintain this accreditation, the lab undergoes an audit every five years. The goal of the audit is to ensure that the lab follows standard operating procedure. The accreditation board also conducts a general assessment on an annual basis. Tsang was aware that in 2007 the New York State Attorney General reported on systematic failures of integrity at the lab.

Tsang reviewed Barron's analysis. She found that Barron followed the lab's standard operating procedure and that the conclusions were based on scientific findings. Regarding Yergey's testimony about Barron's blank samples being contaminated, Tsang agreed that these were signs of carryover contamination from previous tests. Tsang pointed out in the data package, however, that Barron noted after each of these blanks, "Blank did not meet criteria, rerun," and then proceeded to rerun the blanks through the machine until they came back with clean results. Tsang noted that by rerunning the blanks, Barron was actually going above and beyond what was required. This is because standard operating procedure allows for contaminated blanks so long as the carryover is not of controlled substances.

About Yergey's testimony concerning file numbers missing from the data package, Tsang explained that the missing numbers correlated to "empty runs" of wash solution being sent through the machine. This is done to clean out the instrumentation before the next sample is sent through. The file numbers for these empty runs are not printed out for the data package because they are not related to the case and have no effect on the analysis. The empty runs are simply done for instrument maintenance. When asked how someone reading the data package could tell that no pertinent data was withheld, Tsang explained, "There's a blank and a sample . . . as long as [those] are sequential, the other data file run before or afterwards has nothing to do with that case."

About Yergey's testimony concerning Barron never running a sample of Sustamed as a reference, Tsang explained that because Sustamed is a mixture of four different testosterone what Barron did was compare each of the testosterone to its own standard, thereby positively identifying all active ingredients of Sustamed as being present. While (as Yergey pointed out) there were additional substances present in some of the samples, those substances were not

significant to Barron's analysis because they were just non-controlled-substance fillers. Fillers are the inactive ingredients the manufacturer added to the testosterone mixture.

Finally, Tsang pointed out that while the Code of Federal Regulations may apply to a federal research laboratory such as the NIH, it does not apply to the Department lab. Moreover, any analyst wishing to view the missing data files may request them.

The Court finds that Tsang addressed any concerns that Yegey raised about the Department's laboratory procedure. Both Tsang and Barron took appropriate measures to ensure that instrumentation was functioning properly. While there was carryover contamination in some of the blank samples, the contamination would not have affected the analysis results. This was because Barron ran the Sustamed samples only after the blank samples came back clean. The missing data files would not have affected the analysis results since they corresponded to times that Barron sent wash through the machinery for instrument maintenance purposes. Any substances not referred to in Barron's analysis were merely non-controlled-substance fillers. While Barron's data package may have been in violation of the Code of Federal Regulations, which govern federal research labs like the NIH, those regulations do not govern forensic labs like the Department's. The integrity of the chain of custody went undisputed.

Because the drug test Respondent took could not distinguish between the legally prescribed testosterone cypionate and the illegal testosterone formula found in Sustamed, we will never know definitively whether or not he ever ingested Sustamed. Nevertheless, the laboratory results demonstrated that the ampules labeled Sustamed did in fact contain Sustamed residue. The sole issue in Specification No. 9 is whether or not Respondent knew that the ampules he possessed contained an illegal substance. It is undisputed that the lab analysis found no trace of

testosterone cypionate in the ampules. (See DX 21.) This is inconsistent with Respondent's already hard-to-believe claim that because all of his cypionate vials broke, he transferred the cypionate into Sustamed ampules that he purchased. If Respondent's explanation were true, there would have been some trace of cypionate in the ampules in addition to the Sustamed. This conclusion is consistent with Green's testimony indicating that Respondent was an anabolic steroid abuser.

Based on the foregoing, Respondent is found Guilty of Specification No. 9.

The April 10, 2013 Official Department Interview

Respondent is charged in Specification No. 10 with providing inaccurate and misleading statements during his official Department interview in that he said his doctor prescribed Sustamed, when this was not true. At both his interview and at trial, Respondent consistently claimed that the ampules labeled Sustamed contained his legally prescribed [REDACTED] [REDACTED]. He never claimed that his doctor prescribed Sustamed. Accordingly, he is found Not Guilty of this Specification. [DX 23A is the compact disc recording of Respondent's official Department interview. DX 23B and C are the transcript of pertinent interview excerpts.]

PENALTY

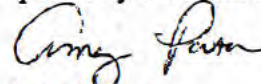
In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 10, 2006. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pled guilty to wrongfully operating a motor vehicle while under the influence of an intoxicant, refusing to submit to a breathalyzer test, being unfit for duty while off duty, being unfit for duty while armed, and possessing an unauthorized duplicate shield. In addition, Respondent has been found guilty of knowingly and unlawfully possessing an anabolic steroid. The Assistant Department Advocate recommended that Respondent be terminated from the Department.

While the charges relating to the March 15, 2011 car accident may be offenses that do not automatically result in termination, they are serious. Respondent's drinking and driving was the cause of a multi-vehicle accident in which two on-duty members of the service sustained injury. As for steroid cases, there have been numerous occasions where a member of the service has pled guilty or been found guilty, but termination was not imposed. However, the Court has found that Respondent's testimony regarding the content of the Sustamed vials was not forthright. Moreover, unlike some anabolic steroids, Sustamed cannot be legally prescribed in the United States. This makes it comparable to illegal controlled substances, such as marijuana and cocaine, for which the Department has always maintained a policy of termination.

Accordingly, it is recommended that Respondent be DISMISSED from the New York City Police Department.

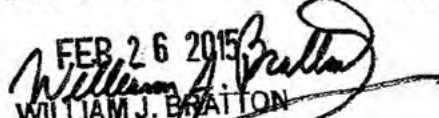
Respectfully submitted,



Amy J. Porter

Assistant Deputy Commissioner – Trials

APPROVED

FEB 26 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER SERGIO GONZALEZ
TAX REGISTRY NO. 941837
DISCIPLINARY CASE NO. 2011-4169

Respondent received an overall rating of 3.0 "Competent" on his last three annual performance evaluations. [REDACTED]

Respondent has no prior formal disciplinary record.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner Trials